TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
OCTOBER 29, 2018
MINUTES

Green arrows ▶ in Minutes are hyperlinks to the recording

Attachment 1—Staff Report
Attachment 2—A-4-18 additional correspondence

Present: Joseph Belton, Chair, David Rubin, Barry Wolff, Bobby Carrier, Stephen Wood, Stephen Duke, Glyn Cowden.
Staff: Michael Robertson, Kent Prause, Lynnette Lynes

Mr. Belton called the meeting to order at 6:10 pm.

1. Approval of Agenda

▶ *Mr. Wolff moved for approval of the agenda. Mr. Rubin seconded the motion. All in favor.*

2. Approval of Minutes

▶ *Mr. Wolff moved for approval of the minutes. Mr. Wood seconded the motion. All in favor.*

Mr. Belton reviewed the procedures with the public.

3. Public Comment

There being no comments, Mr. Belton continued with the agenda.

4. General Correspondence

▶ Mr. Robertson stated that all correspondence was forwarded to the Board for review.

5. Administration of Oath

▶ Mr. Belton administered the oath to those speaking.

6. Business

A. Case A-4-18, 2164 Beckenham Drive, TM# 594-12-00-363, Appeal of Zoning Administrator's Decision that a basketball goal is an Accessory Use and subject to the setbacks for an Accessory Use as required in §156.111 Location of Accessory Uses.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Trey Harrell, attorney, reviewed the request with the Board. He distributed a copy of the initial letter from staff for the Board to review (attachment 2).

Mr. Eddie Yarborough, 2160 Beckenham Dr, stated that he is the neighbor and would like the basketball goal to be in compliance with the ordinance. He stated that his home is located near the property line. He stated that many of the other basketball goals in the neighborhood are temporary and not permanently affixed in concrete.

Mr. Wolff asked if the goal is adjacent to the driveway. Mr. Yarborough answered in the affirmative. He stated that the goal is located near their kitchen window. He stated that they would like the goal to be six feet off the driveway to prevent his home from potentially being damaged.

Mr. Wood asked if the goal is permanently affixed. Mr. Harrell answered that it can be removed. Mr. Wood asked if it is bolted to the concrete. Mr. Harrell answered in the affirmative. Mr. Wood asked if Mr. Harrell would agree that the town ordinances would take precedence over the HOA covenants and restrictions. Mr. Harrell answered that there is some case law pertaining to this subject, but agreed that the ordinances do take precedence. Mr. Harrell asked if the approval from the HOA can be included in the record. Mr. Belton answered in the affirmative (see attachment 2).

There being no further comments, Mr. Belton closed public comment.

Mr. Belton asked for clarification on the Zoning Administrator's determination. Mr. Kent Prause reviewed his findings for the Board and stated that the issue is where the goal is located on the property. He reviewed pictures of the goal for the Board (attachment 1). He stated there is a remedy available to correct the issue.

Mr. Wolff asked the reason the goal cannot be moved to the other side of the driveway. Mr. Harrell answered that the home is too close to the driveway on the other side; the goal would have to be placed on the home. He stated that if moved back to the fence, a portion of the fence would need to be removed. He stated that subsequent landscaping has also been added along the same side of the driveway as the basketball goal.

Mr. Wood asked if the goal could be placed near the pool in the backyard as it appears to have a large deck. Mr. Harrell answered that a picture of the pool was not included in the record but there is not sufficient room. Mr. Wood stated that he knows of the pool through google maps. Mr. Harrell answered that there is not sufficient room for the goal in the backyard.

Mr. Belton stated that it is common practice to have setbacks for basketball goals. He asked if there is a distinction provided in the ordinance to temporary or permanent goals. Mr. Wood answered in the negative, but asked the question for logical reasons.

Mr. Cowden stated that the basketball goal received approval from the HOA ARB.

Mr. Wolff asked if it was a removable goal, would it still be a problem. Mr. Prause answered that it is an accessory use and if not located sufficiently from the property line, then it would still be a violation. Mr. Wolff asked if playing cornhole in the driveway would be considered an accessory use. Mr. Prause answered in the affirmative.

Mr. Carrier expressed aggravation that this issue has escalated to point of having to come before the Board.

Mr. Belton suggested that staff is not out of the realm of reasonability regarding the interpretation of the ordinance. He expressed concern with not having more clarity on the examples listed in the ordinance. He suggested that if not specifically listed in the ordinance then it should be allowed.

▶ *Mr. Wolff moved for approval of the appeal based on the findings included in the application that a basketball goal is not an accessory structure and that a*

precedence would be set if the Board were to police basketball goals. Mr. Cowden seconded the motion. Motion passed on a 5 to 2 vote with Mr. Wolff, Mr. Rubin, Mr. Cowden, Mr. Belton, and Mr. Duke in favor; Mr. Wood and Mr. Carrier opposed.

B. Case V-27-18, 1448 Cardinal Hill, TMS# 580-00-00-108, Appeal from the strict application of §156.102 Height and Size of Buildings and/or Structures to allow a height of 43-foot, 10 inches; the ordinance limits height to 40 feet, and to allow a 3 ½ story house; the Cardinal Hill Planned Development limits residences to 2 ½ stories.

- Mr. Wood suggested that the applicant is not present.

Mr. Robertson reviewed the options for the Board regarding disposition of this case.

- *Mr. Wood moved for denial of the request based on findings that HOA is opposed to the request and the application did not meet all of the required criteria for a variance. Mr. Wolff seconded the motion. All in favor.*

C. Case S-11-18, 712 Atlantic Street, TMS# 532-06-00-106, Request for a Special Exception in accordance with the standards of §156.325 Principle Use Table, §156.326 (C)(5)(e)(1-6), and §156.411 (A)(3) to allow a Bed and Breakfast.

- Mr. Rubin recused himself due to a conflict of interest.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Ms. Linda Boals, applicant reviewed the request with the Board.

Mr. Cowden asked if the owner lives on the property. Ms. Boals answered in the affirmative.

There being no comments, Mr. Belton closed public comments.

Mr. Wolff suggested that this is a situation of asking for permission for an existing use. He suggested that the parking standard cannot be met and asked

staff for clarification on whether tandem parking meets the ordinance. Mr. Robertson answered that tandem parking is allowed for residential uses. Mr. Robertson reviewed the definition of a rear yard with the Board. He stated that the Board has purview over determining where the rear yard is located and if the intent of the ordinance would be met based on the applicant response.

Mr. Wood expressed concern with the single driveway and that t might not provide sufficient parking for the bed and breakfast use.

Mr. Cowden suggested that parking on the side of the driveway could be considered parking in the backyard. Mr. Robertson stated that the Board would need to determine where the backyard was located and if the application meets this requirement.

Mr. Belton asked for clarification on where the parking is located.

Mr. Wolff expressed concern with a single driveway and that it could mean that a vehicle would be parked in the right-of-way. He suggested that the location of the parking should be clarified in the ordinance. He suggested that the application meets the parking.

▶ *Mr. Wolff moved for denial of the request based on findings that the application does not meet the parking requirements as allowed in 156.411. Mr. Carrier seconded the motion. All in favor.*

7. Approval of Final Orders

The final orders were deferred.

There being no further business, the meeting adjourned at 7:06 pm.

Submitted by,
L. Lynes
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